

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX-----X  
Mahamadou Hydara, Mamadou Diallo and Abdul Sankaray:: Index Number:  
: Date Purchased:  
: Date Filed:

Plaintiffs

: SUMMONS

-against-

:

City of New York, New York City Police Department :  
New York City Police Officer Emmanuel Fernandez,  
Shield 16823 of the 44 Precinct, Sergeant Rodriguez of the  
44 Precinct and New York City Police Officers John  
Doe, :: Plaintiff Hydara's  
: residence is:  
: 1330 Webster Avenue  
: Bronx, NY 10456

Defendants

-----X

TO THE ABOVE NAMED DEFENDANTS:

YOU ARE HEREBY SUMMONED to Answer the Verified Complaint in this action and serve a copy of your answer, or if the Verified Complaint is not served with this Summons to serve a notice of Appearance on the Plaintiffs attorney within twenty (20) days after the service of this Summons, exclusive of the day of service (or within thirty (30) days after the service is complete if this Summons is not personally delivered to you within the State of New York) and in case of your failure to appear or answer, judgment will be taken against you by default for the relief demanded in the Verified Complaint.

The basis of venue designated is that the cause of action arose and Plaintiffs reside in Bronx County.

Dated: September 10, 2015  
New York, NY

Yours, etc.,

LAW OFFICES OF JASON A. STEINBERGER, LLC  
Attorney for Plaintiffs  
505 Eighth Avenue  
Suite 701  
New York, NY 10018  
(646) 256-1007

To: City of New York

New York City Police Department

New York City Police Officer Emmanuel Fernandez, Shield 16823 of the 44 Precinct

Sergeant Rodriguez, of the 44 Precinct

New York City Police Officers John Doe

SUPREME COURT OF THE STATE OF NEW YORK  
COUNTY OF BRONX

-----X  
Mahamadou Hydara, Mamadou Diallo and Abdul Sankaray:

Plaintiffs

-against-

City of New York, New York City Police Department  
New York City Police Officer Emmanuel Fernandez,  
Shield 16823 of the 44 Precinct, Sergeant Rodriguez of the  
44 Precinct and New York City Police Officers John  
Doe,

Defendants

: VERIFIED COMPLAINT

:  
-----X  
Plaintiff, by and through his attorney, JASON A. STEINBERGER, Esq, for his complaint,  
alleges upon information and belief as follows:

**STATEMENT OF FACTS**

1. That at all times hereinafter mentioned, Plaintiff Mahamadou Hydara, (hereinafter referred to as "HYDARA") is a resident of Bronx County, State of New York.
2. That at all times hereinafter mentioned, Plaintiff Mamadou Diallo, (hereinafter referred to as "DIALLO") is a resident of Bronx County, State of New York.
3. That at all times hereinafter mentioned, Plaintiff Abdul Sankaray (hereinafter referred to as "SANKARAY") is a resident of Bronx County, State of New York.
4. That at all times hereinafter mentioned, the New York City Police Officers Emmanuel Fernandez, Shield number 16823 of the 44 Precinct (hereinafter referred to as "FERNANDEZ") was employed by the New York City Police Department.

5. That at all times hereinafter mentioned, the Sergeant Rodriguez, of the 44 Precinct (hereinafter referred to as "RODRIGUEZ") was employed by the New York City Police Department.

6. That at all times hereinafter mentioned, the New York City Police Officers John Doe, (hereinafter referred to as "DOES") were employed by the New York City Police Department.

7. That at all times hereinafter mentioned, Defendant City of New York, is a municipal corporation organized and existing under the laws of the State of New York, with a principal place of business located at 1 Centre Street, County of New York State of New York.

8. That at all times hereinafter mentioned, Defendant New York City Police Department, is an agency created and maintained by the above municipal government.

9. On or about June 23, 2014 notice required by Municipal Law 50-E was given to City of New York, by personal service. Said notice set forth the facts underlying Plaintiffs' claim against the City of New York, and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York.

10. On or about August 6, 2014, a hearing required by Municipal Law 50-H was conducted. At said hearing, Plaintiffs testified and set forth the facts underlying Plaintiffs' claim against the City of New York and its agents and employees. To date, no answer has been received by Plaintiff and no compensation has been offered by the City of New York in response to this claim, and more than thirty (30) days have elapsed.

11. That on or about June 13, 2014 at approximately 4:00PM outside of 1315 Sheridan Avenue, Bronx, NY HYDARA was sitting on the stoop and DIALLO and SAKARAY were standing and talking with him.

12. That HYDARA, DIALLO and SAKARAY were each waiting to see a friend who lived in the building.
13. That FERNANDEZ, RODRIGUEZ and DOES got out their police car and approached HYDARA, ordered to stand up and began searching him.
14. That when HYDARA began questioning why he was being searched DIALLO took out his phone and recorded the incident.
15. That SANKARAY was simply standing near DIALLO.
16. That RODRIGUEZ pushed HYDARA up against a wall and when HYDARA repeatedly asked why he was being searched RODRIGUEZ body-slammed HYDARA onto the steps of 1315 Sheridan Avenue.
17. That HYDARA was then handcuffed and arrested.
18. That RODRIGUEZ then looked towards DIALLO who recorded the incident and ordered that DIALLO and SANKARAY be arrested.
19. That RODRIGUEZ and DOES then handcuffed and arrested DIALLO and SANKARAY.
20. That at no time did any of the Plaintiffs engage in any criminal or unlawful behavior.
21. That at no time did any of the Plaintiffs possess anything of an illegal or unlawful nature.
22. That after Plaintiffs were arrested, they were transported to the 44 police precinct.
23. That while Plaintiffs were inside of the 44 precinct, Plaintiffs were held in a holding cell occupied with other males for several hours.
24. That after several hours DIALLO and SANKARAY were issued summons' for Disorderly Conduct and released from the 44 Precinct.
25. That Both DIALLO and SANKARAY were required to appear in court on August 20, 2014.

26. That on August 20, 2014 the summons issued against DIALLO was dismissed.
27. That on August 20, 2014 the summons issued against SANKARAY was dismissed.
28. That after several hours of being held in the 44 Precinct, HYDARA was transported to Bronx County Central Booking located at 215 East 161 Street, Bronx, NY.
29. That HYDARA was then held for several hours in a cell occupied with other men for several hours.
30. That HYDARA was inside of a cell that did not have a working toilet.
31. That HYDARA was subjected to harassment by other male prisoners.
32. That on June 14, 2014, the case against HYDARA was declined to be prosecuted by the Office of the Bronx District Attorney.

**AS AND FOR A FIRST CAUSE OF ACTION AGAINST DEFENDANTS**

33. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 32, as if more fully stated herein at length.
34. That Defendants acted with actual malice toward Plaintiff HYDARA and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff.
35. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.
36. That as a result of the actions by Defendants, Plaintiff HYDARA was traumatized and fears his physical safety when he sees and encounters members of the New York City Police Department from that day and onward.

37. That as a result of the actions of Defendants, Plaintiff was seriously injured due to the intentional manner in which Defendants, their agents, servants, employees and/or licensees treated Plaintiff and he was wounded, suffered, still suffers, and will continue to suffer for some time great physical pain and great bodily injuries and became sick, sore, lame and disabled and so remained for a considerable length of time.

38. That as a result of the Defendants' actions, Plaintiff HYDARA has been unable to sleep.

39. That as a result of the Defendants' actions, Plaintiff HYDARA missed multiple days of school.

40. That as a result of the Defendants' actions, Plaintiff HYDARA missed multiple days of work.

41. That as a result of the Defendants' actions Plaintiff HYDARA sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

#### **AS AND FOR A SECOND CAUSE OF ACTION AGAINST DEFENDANTS**

42. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 41, as if more fully stated herein at length.

43. The intentional verbal abuse, false arrest and false imprisonment by Defendants violated the rights of the Plaintiff HYDARA as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

44. Defendants having no lawful authority to arrest Plaintiff HYDARA, did, nevertheless, unlawfully arrest Plaintiff HYDARA with actual malice toward him and with willful and wanton

indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff HYDARA is entitled to both compensatory and exemplary damages.

#### **AS AND FOR A THIRD CAUSE OF ACTION AGAINST DEFENDANTS**

45. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 44, as if more fully stated herein at length.

46. Defendants conspired to violate Plaintiff HYDARA's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff HYDARA is entitled to both compensatory and exemplary damages, as well as attorney's fees.

#### **AS AND FOR A FOURTH CAUSE OF ACTION AGAINST DEFENDANTS**

47. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 46, as if more fully stated herein at length.

48. Plaintiff HYDARA was verbally abused, falsely arrested and falsely imprisoned by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff HYDARA to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest and false imprisonment on and of Plaintiff HYDARA by Defendants were unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff HYDARA. Plaintiff HYDARA is thus entitled to compensatory and exemplary damages.



**AS AND FOR A FIFTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND  
NEW YORK CITY POLICE DEPARTMENT**

49. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 48, as if more fully stated herein at length.

50. At all times pertinent hereto, FERNANDEZ, RODRIGUEZ and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

51. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that FERNANDEZ, RODRIGUEZ and DOES committed within the scope of their employment.

**AS AND FOR A SIXTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND  
NEW YORK CITY POLICE DEPARTMENT**

52. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 51, as if more fully stated herein at length.

53. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff HYDARA. Plaintiff HYDARA is thus entitled to compensatory exemplary damages.

**AS AND FOR A SEVENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK  
AND NEW YORK CITY POLICE DEPARTMENT**

54. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 53, as if more fully stated herein at length.

55. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff HYDARA.

56. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff HYDARA.

**AS AND FOR AN EIGHTH CAUSE OF ACTION AGAINST DEFENDANTS**

57. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 56 as if more fully stated herein at length.

58. That Defendants acted with actual malice toward Plaintiff DIALLO and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff DIALLO.

59. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

60. That as a result of the actions by Defendants, Plaintiff DIALLO was traumatized and fears for his physical safety when he sees and encounter members of the New York City Police Department from that day and onward.

61. That as a result of the Defendants' actions, Plaintiff DIALLO has been unable to sleep.

62. That as a result of the Defendants' actions, Plaintiff DIALLO missed multiple days of work.

63. That as a result of the Defendants' actions Plaintiff DIALLO sustained damage to his person in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

**AS AND FOR A NINTH CAUSE OF ACTION AGAINST DEFENDANTS**

64. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 63, as if more fully stated herein at length.

65. The intentional verbal abuse, false arrest and false imprisonment by Defendants violated the rights of Plaintiff DIALLO as guaranteed by the Fourth, Fifth and Eighth Amendments to the Unites States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

66. Defendants having no lawful authority to arrest Plaintiff DIALLO, did, nevertheless, unlawfully arrest Plaintiff DIALLO with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff DIALLO is entitled to both compensatory and exemplary damages.

**AS AND FOR A TENTH CAUSE OF ACTION AGAINST DEFENDANTS**

67. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 66, as if more fully stated herein at length.

68. Defendants conspired to violate Plaintiff DIALLO's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff DIALLO is entitled to both compensatory and exemplary damages, as well as attorney's fees.

**AS AND FOR A ELEVENTH CAUSE OF ACTION AGAINST DEFENDANTS**

69. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 68, as if more fully stated herein at length.

70. Plaintiff was verbally abused, falsely arrested and falsely imprisoned by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff DIALLO to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest and false imprisonment on and of Plaintiff DIALLO by Defendants was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff DIALLO. Plaintiff DIALLO is thus entitled to compensatory and exemplary damages.

**AS AND FOR A TWELFTH CAUSE OF ACTION AGAINST CITY OF NEW YORK  
AND NEW YORK CITY POLICE DEPARTMENT**

71. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 70, as if more fully stated herein at length.

72. At all times pertinent hereto, FERNANDEZ, RODRIGUEZ and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

73. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that FERNANDEZ, RODRIGUEZ and DOES committed within the scope of their employment.

**AS AND FOR A THIRTEENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

74. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 73, as if more fully stated herein at length.

75. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff DIALLO. Plaintiff DIALLO is thus entitled to compensatory exemplary damages.

**AS AND FOR A FOURTEENTH CAUSE OF ACTION AS AGAINST CITY OF NEW YORK AND NEW YORK CITY POLICE DEPARTMENT**

76. Plaintiff repeats, reiterates and realleges the allegations contained in paragraphs 1 through 75, as if more fully stated herein at length.

77. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff DIALLO.

78. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff DIALLO.

**AS AND FOR AN FIFTEENTH CAUSE OF ACTION AS DEFENDANTS**

79. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 78 as if more fully stated herein at length.

80. That Defendants acted with actual malice toward Plaintiff SANKARAY and with willful and wanton indifference to and deliberate disregard for the statutory and constitutional rights of the Plaintiff SANKARAY.

81. That the actions of the Defendants constituted unreasonable deprivation of liberty without due process of law.

82. That as a result of the actions by Defendants, Plaintiff SANKARAY was traumatized and fears for his physical safety when she sees and encounter members of the New York City Police Department from that day and onward.

83. That as a result of the Defendants' actions, Plaintiff SANKARAY has been unable to sleep.

84. That as a result of the Defendants' actions, Plaintiff SANKARAY missed multiple days of school.

85. That as a result of the Defendants' actions, Plaintiff SANKARAY missed multiple days of work.

86. That as a result of the Defendants' actions Plaintiff SANKARAY sustained damage to his persons in the sum within the jurisdiction of the Supreme Court and in excess of all inferior courts.

**AS AND FOR A SIXTEENTH CAUSE OF ACTION AGAINST DEFENDANTS**

87. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 86, as if more fully stated herein at length.

88. The intentional verbal abuse, false arrest and false imprisonment by Defendants violated the rights of Plaintiff SANKARAY as guaranteed by the Fourth, Fifth and Eighth Amendments to the United States Constitution, as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable.

89. Defendants having no lawful authority to arrest Plaintiff SANKARAY, did, nevertheless, unlawfully arrest Plaintiff SANKARAY with actual malice toward him and with willful and wanton indifference to and deliberate disregard for his constitutional rights. Thus Plaintiff SANKARAY is entitled to both compensatory and exemplary damages.

**AS AND FOR A SEVENTEENTH CAUSE OF ACTION AGAINST DEFENDANTS**

90. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 89, as if more fully stated herein at length.

91. Defendants conspired to violate Plaintiff SANKARAY's statutory civil rights in violation of 42 U.S.C. sec.1983, et al as well as the corresponding sections of the New York State Constitution, for which Defendants are individually liable. Thus Plaintiff SANKARAY is entitled to both compensatory and exemplary damages, as well as attorney's fees.

**AS AND FOR A EIGHTEENTH CAUSE OF ACTION AGAINST DEFENDANTS**

92. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 91, as if more fully stated herein at length.

93. Plaintiff was verbally abused, falsely arrested and falsely imprisoned by Defendants in a manner that was extreme, outrageous and unjustified and caused Plaintiff SANKARAY to suffer physical and severe emotional distress for which the Defendants are individually liable. The verbal abuse, false arrest and false imprisonment on and of Plaintiff SANKARAY by Defendants was unjustified and done with actual malice and wanton indifference to and deliberate disregard for human life and the rights of Plaintiff SANKARAY. Plaintiff SANKARAY is thus entitled to compensatory and exemplary damages.

**AS AND FOR A NINETEENTH CAUSE OF ACTION AGAINST CITY OF NEW YORK  
AND NEW YORK CITY POLICE DEPARTMENT**

94. Plaintiffs repeats, reiterates and realleges the allegations contained in paragraphs 1 through 83, as if more fully stated herein at length.

95. At all times pertinent hereto, FERNANDEZ, RODRIGUEZ and DOES were acting within the scope of their employment as officers of the New York City Police Department and City of New York.

96. The City of New York and New York City Police Department are each liable for compensatory damages under the doctrine of respondeat superior for the intentional torts that FERNANDEZ, RODRIGUEZ and DOES committed within the scope of their employment.



**AS AND FOR A TWENTIETH CAUSE OF ACTION AGAINST CITY OF NEW YORK  
AND NEW YORK CITY POLICE DEPARTMENT**

97. Plaintiffs repeat, reiterates and realleges the allegations contained in paragraphs 1 through 96, as if more fully stated herein at length.

98. The City of New York and New York City Police Department's failure to provide adequate training and supervision to its police officers constitutes a willful and wanton indifference and deliberate disregard for human life and the rights of private citizens, including Plaintiff SANKARAY. Plaintiff SANKARAY is thus entitled to compensatory exemplary damages.

**AS AND FOR A TWENTY-FIRST CAUSE OF ACTION AS AGAINST CITY OF NEW  
YORK AND NEW YORK CITY POLICE DEPARTMENT**

99. Plaintiffs repeat, reiterates and realleges the allegations contained in paragraphs 1 through 98, as if more fully stated herein at length.

100. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted and tolerated the unreasonable detention of Plaintiff SANKARAY.

101. Upon information and belief, the City of New York and New York City Police Department maintained a system of review of police conduct which was so untimely and cursory that it was ineffective and permitted the wanton indifference to and deliberate disregard for the statutory and constitutional rights of Plaintiff SANKARAY.

WHEREFORE, Plaintiffs each demand judgment against the Defendants as follows:

**On the first cause of action**, a sum within the jurisdiction of this Court and in excess of all inferior courts;

**On the second cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

**On the third cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

**On the fourth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

**On the fifth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

**On the sixth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

**On the seventh cause of action**, a sum within the jurisdiction of this Court and in excess of all inferior courts.

**On the eighth cause of action**, a sum within the jurisdiction of this Court and in excess of all inferior courts;

**On the ninth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

**On the tenth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

**On the eleventh cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

**On the twelfth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts

**On the thirteenth cause of action**, a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

**On the fourteenth cause of action**, a sum within the jurisdiction of this Court and in excess of all inferior courts.

**On the fifteenth cause of action**, a sum within the jurisdiction of this Court and in excess of all inferior courts;

**On the sixteenth cause of action,** a sum within the jurisdiction of the of this Court and in excess of all inferior courts, together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

**On the seventeenth cause of action,** a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the willful and wanton nature of Defendants actions.

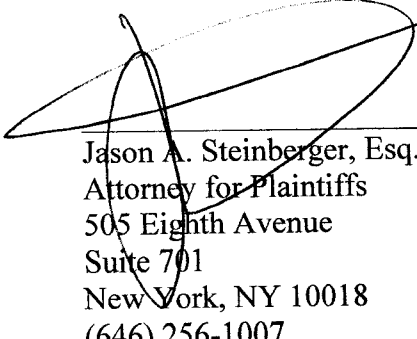
**On the eighteenth cause of action,** a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts owing to the wanton and willful nature of the Defendants actions;

**On the nineteenth cause of action,** a sum within the jurisdiction of the of this Court and in excess of all inferior courts

**On the twentieth cause of action,** a sum within the jurisdiction of the of this Court and in excess of all inferior courts together with the additional exemplary sum within the jurisdiction of this court and in excess of all inferior courts.

**On the twenty-first cause of action**, a sum within the jurisdiction of this Court and in excess of all inferior courts.

Law Offices of Jason A. Steinberger, LLC



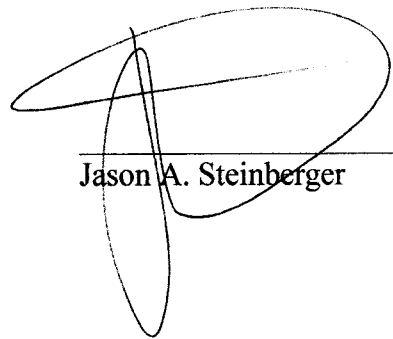
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Jason A. Steinberger, Esq.  
Attorney for Plaintiffs  
505 Eighth Avenue  
Suite 701  
New York, NY 10018  
(646) 256-1007

STATE OF NEW YORK: COUNTY OF NEW YORK

The undersigned, an attorney admitted to practice in the State of New York, under penalties of perjury, affirms the following to be true: Affirmant has read the foregoing Complaint and the contents thereof ; the same is true to affirmant's own knowledge, except as to matters therein stated to be alleged on information and belief and as to those matters affirmant believes it to be true; and the reason this verification is made by affirmant and not by the plaintiff is because the plaintiff is not within the county in which your affirmant maintains his principal office. The grounds of affirmant's belief as to all matters not stated upon affirmant's knowledge are communications with the plaintiff, review of records and documents within affirmant's possession.

Affirmed: September 11, 2015



Jason A. Steinberger

**Index Number:**  
**SUPREME COURT OF THE STATE OF NEW YORK**  
**COUNTY OF BRONX**

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**MAHAMADOU HYDARA, MAMADOU DIALLO and ABDUL SANKARAY,**

Plaintiffs

**-against-**

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**CITY OF NEW YORK, NEW YORK CITY POLICE DEPARTMENT POLICE, NEW  
YORK CITY POLICE OFFICER EMMANUEL FERNANDEZ, SHIELD 16823 OF THE  
44 PRECINCT, SERGEANT RODRIGUEZ OF THE 44 PRECINCT AND NEW YORK  
CITY POLICE OFFICERS JOHN DOE,**

**Defendant.**

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**SUMMONS AND COMPLAINT**

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**LAW OFFICES OF JASON A. STEINBERGER, LLC**

505 Eighth Avenue  
Suite 701  
New York, NY 10018

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To:  
Attorney (s) for Defendant(s)

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Service of a copy of the within

is hereby admitted.

Dated:

\_\_\_\_\_  
Attorney(s) for

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**PLEASE TAKE NOTICE**

☐ that the within is a (certified) true copy of  
☐ entered in the office of the clerk of the within named Court on

**NOTICE  
OF ENTRY**

☐ that an Order of which the within is a true copy will be presented for settlement to the Hon.  
**NOTICE OF** once of the Judges of the within named Court,  
**SETTLEMENT** at

on

200 , at m.

Dated:

**JASON A. STEINBERGER, ESQ.**  
**505 Eighth Avenue, Suite 701**  
**New York, NY 10018**

To:  
Attorney(s) for